EXHIBIT 38

GUIDELINE FOR FEDERAL FUNDING PROCUREMENT THRESHOLDS

Guideline for Federal Funding Procurement Thresholds

Micro Purchases (P-Card or Single Quotation) Up to $10,000	Simplified Acquisition (Request for Quotations) Above $10,000 up to $250,000	Formal Solicitations (Invitation for Bids / Request for Proposals) Above $250,000
Competition: Procured on the open market with or without competition.	**Competition:** Procured on the open market by soliciting a minimum of three (3) quotes and securing a minimum of two (2)* written quotes. If less than two (2) are received a sole source form is required. * See specific grant award documents. i.e. FEMA Grants require three (3) solicited and three (3) secured.	**Competition:** Procured formally on the open market by the Procurement Division.
Board Approval: Not Applicable	**Board Approval:** Not Applicable.	**Board Approval:** Applicable to solicitations, emergencies, sole sources and exemptions over $500,000.
Solicitation: Departments/Divisions may solicit quotations.	**Solicitation:** Departments/Divisions may solicit written quotes for projects under $250,000 subject to the review and acceptance of the Procurement Division. Requirements over $250,000 shall be solicited by the Procurement Division.	**Solicitation:** All formal procurements shall be solicited by the Procurement Division.
Project Information Sheet may be required for requirements established by the Procurement Division (generally, term Contracts; not applicable to P-Card). **Federal Compliance Form** is required for Requisitions where the department has solicited quotations. **P-Card Log** is required to document federal transactions.	**Project Information Sheets** are required for all items solicited by the Procurement Division. **Federal Compliance Form** is required for Requisitions under $100,000 where the department/division has solicited quotations.	**Project Information Sheet** are required for all items solicited by the Procurement Division. **Federal Compliance Form** is required for Requisitions where the department has solicited quotations.
Minority and Small Business Requirements: Distribute micro-purchases equitably among qualified suppliers and use small and minority businesses, women's business enterprises, and labor surplus area firms when possible.	**Minority and Small Business Requirements:** Ensure solicitations are disseminated inclusive of Small Business Administration Marketing Lists and Local Surplus Area firms. See: http://dsbs.sba.gov/dsbs/search/	**Minority and Small Business Requirements:** Ensure solicitations are disseminated inclusive of Small Business Administration Marketing Lists and Local Surplus Area firms. See: http://dsbs.sba.gov/dsbs/search/
Sub-Contracting: Firms sub-contracting must execute an affidavit of compliance with Federally Mandated affirmative small business steps.	**Sub-Contracting:** Firms sub-contracting must execute an affidavit of compliance with Federally Mandated affirmative small business steps.	**Sub-Contracting:** Firms sub-contracting must execute an affidavit of compliance with Federally Mandated affirmative small business steps.
Sole Source: Documentation is not required	**Sole Source:** Documentation is required for any proprietary or unique need impacting competition. This may require concurrence from the funding source. Analysis to establish price reasonableness shall be sufficiently documented.	**Sole Source:** Documentation is required for any proprietary or unique need impacting competition. This may require concurrence from the funding source. Analysis to establish price reasonableness shall be sufficiently documented.
Emergency procurement: Documentation is required for any procurement requiring expedited coordination due to operational urgency, health and public safety hazards.	**Emergency procurement:** Documentation is required for any procurement requiring expediting or ratification due to operational urgency, health and public safety hazards. In the event of a State or Federal emergency declaration this documentation will be secured once the organization is operational and the exigency period has passed.	**Emergency procurement:** Documentation is required for any procurement requiring expediting or ratification due to operational urgency, health and public safety hazards. In the event of a State or Federal emergency declaration this documentation will be secured once the organization is operational and the exigency period has passed.
Risk Management/Insurance: Requires coordination with the Risk Management Division to ensure insurance requirements are established and met. P-Card Transactions for services limited to firms listed as "Approved Insurance Certificates" with a compliant and non-expired status. See link: https://view.monday.com/49597421-770e0aad773e0cef079ef65f53f8759c	**Risk Management/Insurance:** Requires coordination with the Risk Management Division to ensure insurance requirements are established and met.	**Risk Management/Insurance:** Requires coordination with the Risk Management Division to ensure insurance requirements are established and met.

Micro Purchases (P-Card or Single Quotation) Up to $10,000	Simplified Acquisition (Request for Quotations) Above $10,000 up to $250,000	Formal Solicitations (Invitation for Bids / Request for Proposals) Above $250,000
Alternate Contract Source Documentation and Piggy-back forms are not required.	**Alternate Contract Source** Piggy-back Procurement is disallowed (use of another agency's solicitation process to achieve an administrative savings). Cooperative Procurement is allowed (combining your requirements with another agency to achieve a cost savings).	**Alternate Contract Source** Piggy-back Procurement is disallowed (use of another agency's solicitation process to achieve an administrative savings). Cooperative Procurement is allowed (combining your requirements with another agency to achieve a cost savings).
Other Division Coordination/Approvals: May be applicable in accordance with the Procurement Procedures Manual (Technology, Health Services, Geographic Information Systems, Fleet, Capital Projects, etc.)	**Other Division Coordination/Approvals:** May be applicable in accordance with the Procurement Procedures Manual (Technology, Health Services, Geographic Information Systems, Fleet, Capital Projects, etc.)	**Other Division Coordination/Approvals:** May be applicable in accordance with the Procurement Procedures Manual (Technology, Health Services, Geographic Information Systems, Fleet, Capital Projects, etc.)
Orange County Suspension and Debarment limitations are applicable. See: http://orangecountyfl.net/Portals/0/resource%20library/vendor%20services/Suspended-Debarred%20Contractors.pdf	**Orange County Suspension and Debarment** limitations are applicable. See: http://orangecountyfl.net/Portals/0/resource%20library/vendor%20services/Suspended-Debarred%20Contractors.pdf	**Orange County Suspension and Debarment** limitations are applicable. See: http://orangecountyfl.net/Portals/0/resource%20library/vendor%20services/Suspended-Debarred%20Contractors.pdf
Florida State Suspension/ Debarment and Discriminatory Complaints are applicable for disallowance. See: https://www.dms.myflorida.com/business_operations/state_purchasing/state_agency_resources/vendor_registration_and_vendor_lists	**Florida State Suspension/ Debarment and Discriminatory Complaints** are applicable for disallowance. See: https://www.dms.myflorida.com/business_operations/state_purchasing/state_agency_resources/vendor_registration_and_vendor_lists	**Florida State Suspension/ Debarment and Discriminatory Complaints** are applicable for disallowance. See: https://www.dms.myflorida.com/business_operations/state_purchasing/state_agency_resources/vendor_registration_and_vendor_lists
Federal System for Awards Management Compliance is required: • Contractors shall not have exclusions but are not required to be registered. • Sub-Recipients shall be registered without exclusions. • Results indicating Federal Debt are disallowed on P-Card. See: https://www.sam.gov/SAM/	**Federal System for Awards Management Compliance is required:** • Contractors shall not have exclusions but are not required to be registered. • Sub-Recipients shall be registered without exclusions. See: https://www.sam.gov/SAM/	**Federal System for Awards Management Compliance is required:** • Contractors shall not have exclusions but are not required to be registered. • Sub-Recipients shall be registered without exclusions. See: https://www.sam.gov/SAM/
Independent Estimate: Not Required	**Independent Estimate:** Not Required	**Independent Estimate:** Required in connection with every procurement action including contract modifications.
Written Cost Analysis/Price Analysis: Cost/Price should be considered but a written analysis is not required.	**Written Cost Analysis/Price Analysis:** Cost/Price should be considered but a written analysis is not required.	**Written Cost Analysis/Price Analysis**: Requires a written cost analysis - or -price analysis in connection with every procurement action including contract modifications.
Documentation of Negotiation: Not required.	**Documentation of Negotiation:** Required to negotiate profit as a separate element of the price for each contract in which there is no price competition (single response or sole sources).	**Documentation of Negotiation:** Required to negotiate profit as a separate element of the price for each contract in which there is no price competition (single response or sole sources) and in all cases where cost analysis is performed.
Davis Bacon Act: Construction in excess of $2,000, as federally defined, requires compliance with the Davis-Bacon Act and consideration/dissemination of Prevailing Wage Determinations and shall be validated by the Procurement Division via requisition for a Purchase Order. Construction in excess of $2,000 shall not be placed on the P-Card	**Davis Bacon Act**: Construction, as federally defined, requires compliance with the Davis-Bacon Act and consideration/dissemination of Prevailing Wage Determinations.	**Davis Bacon Act**: Construction, as federally defined, requires compliance with the Davis-Bacon Act and consideration/dissemination of Prevailing Wage Determinations.

OTHER RESTRICTIONS (2 CFR §200.317-326 & 45 CFR § 75.326-340)

- Geographic Preferences are disallowed
- Brand specific references are disallowed (unless equivalents are allowed)
- Cost-plus pricing structure is disallowed
- Percentage of construction cost method is disallowed
- Orange County M/WBE Requirements are disallowed
- Procurement Ordinance Exemptions are disallowed
- Orange County Contractor Pre-Qualifications are disallowed
- Standardizations require written justification (see Procurement Procedures Manual)

Expressed written consent from the Federal Funding Source is required for waiver of a restriction.